

## Mitthu Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 March 2015 · Writ-C No. 13495 of 2015 · **Writ disposed; petitioner relegated to Clause 6.5 for bill correction.**

### HEADNOTE

A consumer who says a later electricity bill wrongly includes One Time Settlement arrears cannot obtain writ correction of that bill. The remedy is an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if moved, the concerned authority must consider it and correct the bill if any arrear is wrongly shown.

### FACTUAL SUMMARY

Mitthu Lal, a consumer, approached the Allahabad High Court for correction of his electricity bill. Under a One Time Settlement scheme he was to deposit Rs. 45,966 in four instalments. Counsel for the respondents stated those instalments had not been paid. The petitioner's latest bill of Rs. 75,485.24, he said, included arrears of that One Time Settlement, and he sought writ correction of the bill on that footing.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

billing-objection

#### HOLDING

A consumer who seeks correction of an electricity bill said to include arrears of a One Time Settlement cannot obtain that relief in the form of a writ. The proper course is an application under Clause 6.5 of the Electricity Supply Code, 2005. If such an application is moved, the authority concerned will consider it and correct the bill if any arrear is shown. ¶ 1-2

### PRINCIPLE TAGS

#### billing-objection-to-executive-engineer-under-6.5

A consumer who says a later electricity bill wrongly includes One Time Settlement arrears cannot obtain writ correction of that bill. The remedy is an application under Clause 6.5 of the U.P.. ¶ 1-2

#### installment-payment-clause-6.14

A consumer who says a later electricity bill wrongly includes One Time Settlement arrears cannot obtain writ correction of that bill. The remedy is an application under Clause 6.5 of the U.P.. ¶ 1-2

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE PETITIONER HAD DEPOSITED THE ONE TIME SETTLEMENT INSTALMENTS OF RS. 45,966

Respondents asserted non-payment; the Court did not try that fact. ¶ 1

#### NOT DECIDED — WHETHER THE BILL OF RS. 75,485.24 CORRECTLY INCLUDED ONE TIME SETTLEMENT ARREARS

Left to the Clause 6.5 authority. ¶ 1-2